

BEAT LEASE AGREEMENT

BEAT LEASE LICENSE AGREEMENT

This Beat Lease License Agreement (the "Agreement") is made effective as of the ____ day of _____, 20 ("Effective Date"), by and between:

Licensor:

[T. HENDO]

[30 N. GOULD ST STE R, SHERIDAN, WY 82801]

("Licensor")

Licensee:

[Artist's Full Name or Business Name]

[Artist's Address]

("Licensee")

Recitals:

WHEREAS, Licensor is the owner of certain music compositions and sound recordings ("Beat");
WHEREAS, Licensee desires to lease the right to use the Beat for specific purposes, and Licensor agrees to grant such rights under the terms set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the parties agree as follows:

1. Grant of License

1.1 **License:** Licensor hereby grants to Licensee a non-exclusive, non-transferable, revocable license to use the Beat described below for the following purposes:

- **Recording of Music:** Licensee may incorporate the Beat into their sound recordings.
- **Distribution:** Licensee may distribute and sell the sound recordings via digital platforms such as streaming services, digital downloads, and physical media.

1.2 Limitations:

- This license **does not** include the right to use the Beat in any audiovisual works (including film, TV, video games, or commercials), which would require a separate sync license.
- The total number of streams of the sound recording incorporating the Beat shall not exceed **100,000 streams**.
- The license grants **limited performance rights** only for non-commercial purposes. Licensee may perform the sound recording for live performances, but **cannot** charge an entry fee or receive compensation directly from the performance of the sound recording without prior written approval from Licensor.

2. Description of the Beat

2.1 The Beat provided under this Agreement is described as follows:

- **Beat Title:** [Insert Title of Beat]
- **File Format:** [e.g., MP3, WAV]
- **Tempo:** [Insert Tempo]
- **Key:** [Insert Key]
- **Duration:** [Insert Duration of Beat]

The Beat is delivered via [delivery method, e.g., email, file-sharing platform, etc.].

3. Compensation

3.1 **Lease Fee:** In exchange for the rights granted under this Agreement, Licensee shall pay Licensor a one-time non-refundable fee of **\$250.00** ("Lease Fee"). This payment must be made prior to the delivery of the Beat.

3.2 **Royalties and Revenue:** Licensee acknowledges and agrees that Licensor is entitled to receive royalties from any income generated by the use of the Beat, including but not limited to sales, streaming, or licensing of the sound recording. Licensee retains all income and royalties from the exploitation of the sound recording.

4. Restrictions

4.1 **No Sync License:** Licensee may not use the Beat in any audiovisual works, including but not limited to film, television, commercials, video games, or other media requiring synchronization of music with visuals, unless a separate sync license is negotiated with Licensor.

4.2 **Limited Stream Cap:** Licensee is granted the right to stream the sound recording incorporating the Beat, but the total number of streams across all platforms may not exceed **100,000** streams. If this

cap is exceeded, Licensee must negotiate a new license or pay additional fees to Licensor.

4.3 Limited Performance Rights: Licensee is granted limited performance rights for live performances, but these performances **must be non-commercial**. Licensee may not perform the sound recording for profit without obtaining a separate agreement or permission from Licensor.

4.4 No Transfer or Sub-Licensing: Licensee may not assign, transfer, or sublicense any of the rights granted under this Agreement to any third party without prior written consent from Licensor.

4.5 No Modification: Licensee may not alter, remix, or edit the Beat in any way that changes its original composition or structure unless written permission is obtained from Licensor.

5. Ownership and Credit

5.1 Ownership of Beat: Licensor retains full ownership of the Beat and all underlying compositions and recordings. This Agreement grants only a limited license to use the Beat as outlined herein.

5.2 Credit: Licensee agrees to provide proper credit to Licensor in connection with the use of the Beat. Credit should be given in the form of "Produced by [Producer's Name]" on the artwork, album credits, or other promotional materials related to the sound recording.

6. Term and Termination

6.1 Term: This license is granted for a term of **[Insert Term, e.g., 1 year, perpetual]**, beginning on the Effective Date of this Agreement.

6.2 Termination for Breach: Licensor may terminate this Agreement immediately upon written notice if the other party materially breaches any term of this Agreement and fails to remedy such breach within **30 days** after receiving notice of such breach.

6.3 Termination Rights: Upon termination of this Agreement, Licensee must immediately cease using the Beat in any new projects, distributions, or performances. However, any previously distributed sound recordings may remain in circulation and on digital platforms, subject to the terms of this Agreement.

7. Warranties and Representations

7.1 Licensor's Warranties: Licensor represents and warrants that:

- Licensors are the sole owners of the Beat and have the full right to grant the license specified in this Agreement.
- The use of the Beat as authorized by this Agreement does not infringe upon any third-party rights.

7.2 **Licensee's Warranties:** Licensee represents and warrants that:

- Licensee has the full right and authority to enter into this Agreement and perform their obligations hereunder.
- Licensee's use of the Beat will not infringe upon the rights of any third party.

8. Indemnity

Licensee agrees to indemnify, defend, and hold harmless Licensors from any claims, damages, losses, or expenses (including legal fees) arising out of Licensee's breach of this Agreement or any unauthorized use of the Beat.

9. Miscellaneous

9.1 **Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of the state of [Insert State], without regard to its conflict of laws principles.

9.2 **Entire Agreement:** This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof and supersedes all prior agreements or understandings, whether written or oral, relating to the Beat.

9.3 **Amendment:** Any amendments or modifications to this Agreement must be made in writing and signed by both parties.

9.4 **Severability:** If any provision of this Agreement is found to be invalid or unenforceable, the remainder of the Agreement shall remain in full force and effect.

IN WITNESS WHEREOF, the parties hereto have executed this Beat Lease License Agreement as of the Effective Date.

Licensors:

Signature: _____

Name: _____

Date: _____

Licensee:

Signature: _____

Name: _____

Date: _____

This agreement is a template and may require further customization depending on specific legal requirements or needs. Always consult a legal professional to ensure the agreement meets your particular circumstances.